THE EXISTING COMMON LAWS

Parliament has passed laws on marriage, divorce and inheritance for people from any faith to follow

THE SPECIAL MARRIAGE ACT, 1954

Religion-neutral, this Act allows any person from any religion to get married under its provisions. The Act provides legal support to inter-religious/inter-caste marriages. No religious formalities have to be carried out under the Act. The groom must be 21 and the bride at least 18 at the time of marriage and must not be related by blood

FOREIGN MARRIAGE ACT,1969

This Act governs the marriage between an Indian citizen and a foreigner. The marriage should be conducted before a Marriage Officer in the presence of three witnesses in any language understood by both partners and the Marriage Officer

THE INDIAN SUCCESSION ACT, 1925

This law governing succession laws excludes Muslims. However, any person, irrespective of their religion, including a Muslim, who gets married under the Special Marriage Act, 1954, has to follow this law. If both spouses are Hindus, Jains, Sikhs or Buddhists, the law won't apply to them

THE PROHIBITION OF CHILD MARRIAGE ACT, 2006

This law prohibits marriage of a boy who is less than 21 years and a girl who is not 18 yet. In October 2021, the Supreme Court delivered a landmark judgment criminalising sex with a child bride. Till then, consummation of marriage with a minor wife was legal. This law overrides all personal laws

of a UCC. Apart from civil society groups and activists, three chief ministers who are allies of the ruling BJP at the Centre—Meghalaya's Conrad K. Sangma, Nagaland's Neiphiu Rio and Mizoram's Zoramthanga—have categorically opposed the UCC. In other tribal-dominated states such as Jharkhand and Chhattisgarh, there have been protests against the UCC too.

UCC's opponents believe a uniform law, especially of a majoritarian nature, will infringe upon the long-standing customs and practices of tribals that are protected by the Constitution. The administration of designated tribal areas is maintained under the Sixth Schedule of the Constitution in Assam, Meghalaya, Tripura and Mizoram and under the Fifth Schedule in the rest. The District Council and the Regional Council under the Sixth Schedule have legislative powers to deal with subjects like inheritance, succession, marriage and divorce as well as the administration of justice.

More importantly, the Constitution contains several special provisions to preserve the traditions and culture of the tribals in some northeastern states. So it was that home minister Shah assured a delegation led by Nagaland CM Rio that the Union government was considering keeping Christians and some sections of tribals out of the proposed UCC's ambit. BJP Rajya Sabha MP Sushil Modi, who heads the parliamentary panel on personnel, public grievances, law and justice, at a meeting of the panel on July 3, also reiterated that "tribals belonging to indigenous communities of India" should be kept out of the ambit of the UCC. Asked by the Opposition how the code could be called uniform if certain communities are exempted from it, BJP leaders took cover under the constitutional protections guaranteed by Article 371.

However, the BJP also has to guard against antagonising the Hindus, particularly the tax exemptions extended to the Hindu Undivided Family (HUF). A uniform code will have to either derecognise this family structure or extend this facility to every religious group. That's the reason even the BJP's ideological fountainhead, the Rashtriya Swayamsevak Sangh (RSS), has urged caution over the implementation of the UCC. "The Uniform Civil Code was mentioned in the Directive Principles, but the architects of the Constitution never recommended a time-frame for its implementation," says RSS general secretary Dattatreya Hosabale. "We have to educate people about it first. There should be a proper public debate to help clear perceptions."

EXPERIMENTS IN THE STATE

To begin with, the BJP is likely to go for a soft launch. It will introduce the UCC first in Uttarakhand, which has a 14 per cent Muslim population. Depending on reactions to the draft legislation for this state, this will become the template for all future UCC laws. PM Modi and the home minister have taken a keen interest in the Uttarakhand draft. In the first week of July, when Uttarakhand chief minister Pushkar Singh Dhami met Modi and Shah separately in Delhi to discuss the UCC draft, sources say that Justice Ranjana Prakash Desai, chairperson of the Uttarakhand UCC Drafting Committee, was also present. And the committee's priorities, in its words, are gender equality, raising the marriageable age of women to 21, equal rights for daughters in ancestral property, legal rights for LGBTQ couples and population control.

Other BJP-ruled states such as Gujarat and Madhya Pradesh have also expressed their intent to enact uniform civil laws. According to constitutional expert and former Lok Sabha secretary general P.D.T. Achary, both the Centre and the states are empowered to make laws on subjects such as